

ELIZABETH II



1981 CHAPTER xxi

An Act to confer powers upon the Peterborough Development Corporation in relation to the production and supply of heat by the Corporation; and for other purposes.

[27th July 1981]

WHEREAS—

(1) The Peterborough Development Corporation (in this Act called “the Corporation”) was established under the New Towns Act 1965 for an area of 15,940 acres in the county of Cambridgeshire designated by the Peterborough New Town (Designation) Order 1967:

1965 c. 59.

S.I. 1967/1100.

(2) The New Towns Act 1965 provides that the objects of a development corporation established for the purposes of a new town are to secure the laying out and development of the new town in accordance with proposals approved in that behalf under the provisions of the Act:

(3) The Corporation produces and supplies heat under the powers of the New Towns Act 1965:

(4) It is expedient that the provisions contained in this Act relating to the production and supply of heat be enacted:

And that cannot be effected without the

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Peterborough Development Corporation Act 1981.

Interpretation.

2. In this Act, unless the context otherwise requires—

“the Corporation” means the Peterborough Development Corporation;

“associated works” in relation to pipes, means any of the following connected with the pipes, namely, any valve, filter, stopcock, pump, meter, inspection chamber and manhole and such other works as are prescribed.

Power to lay mains and break open streets.

1945 c. 42.
1965 c. 59.

3. Parts V and VI of Schedule 3 to the Water Act 1945 (which relate to the laying of mains and the breaking open of streets) shall apply in relation to pipes and associated works provided or to be provided by the Corporation under section 3 of the New Towns Act 1965 for the purpose of conveying heat produced or acquired by the Corporation and steam produced from and air and water heated by such heat as those Parts apply in relation to water mains and pipes but as if—

(a) sections 19(4) and 21 of that Schedule (which relate to the erection of street notices and the laying of service pipes) were omitted, and in section 22 of that Schedule the words “which they are authorised to lay” were omitted; and

(b) for any reference to undertakers or limits of supply there were substituted respectively a reference to the Corporation and land developed by the Corporation; and

(c) for the reference to the special Act in section 25(4) of that Schedule there were substituted a reference to this section.

Byelaws.

4.—(1) Where the Corporation supplies or proposes to supply heat, hot air, hot water or steam under section 3 of the New Towns Act 1965 it may make byelaws—

(a) with respect to the works and apparatus to be provided or used by persons other than the Corporation;

- (b) for preventing waste and unauthorised use of the supply and unauthorised interference with works and apparatus used by the Corporation or any other person in connection with the supply;
- (c) providing for any specified contravention of the byelaws to be an offence punishable on summary conviction with a fine of such an amount, not exceeding £200, as is specified in the byelaws.

(2) The confirming authority in relation to byelaws made under this section shall be the Secretary of State.

(3) Subsections (3) to (8) of section 236 of the Local Government Act 1972 shall apply to byelaws made by the Corporation under this Act as if references in those subsections to "the authority" included references to the Corporation. 1972 c. 70.

(4) Before making a byelaw under this section, the Corporation shall consult the Cambridgeshire County Council, the Council of the City of Peterborough and the Anglian Water Authority.

(5) The Corporation shall send a copy of every byelaw made by it, and confirmed, to the Cambridgeshire County Council, the Council of the City of Peterborough and the Anglian Water Authority.

(6) The production of a printed copy of a byelaw purporting to be made by the Corporation upon which is endorsed a certificate purporting to be signed by the solicitor to the Corporation stating—

- (a) that the byelaw was made by the Corporation;
- (b) that the copy is a true copy of the byelaw;
- (c) that on a specified date the byelaw was confirmed by the Secretary of State;
- (d) the date, if any, fixed by the Secretary of State for the coming into operation of the byelaw;

shall be prima facie evidence of the facts stated in the certificate, and without proof of the handwriting or official position of any person purporting to sign the certificate.

5. Subsections (1) to (5) of section 82 of Schedule 3 to the Power of Water Act 1945 (which relates to the entry of premises by authorised officers of water undertakers) shall have effect for the purpose of authorising the entry of premises by authorised officers of the Corporation as if for any reference to undertakers there

were substituted a reference to the Corporation and as if in subsection (1) of that section—

(a) for paragraph (a) there were substituted the following paragraph:—

“(a) for the purpose of installing, examining, adjusting, removing or reading any meter used or to be used by the Corporation for measuring the heat, hot air, hot water or steam supplied or to be supplied by the Corporation under section 3 of the New

1965 c. 59.

Towns Act 1965”;

(b) for the words from “the special Act” onwards in paragraph (b) there were substituted the words “byelaws in force by virtue of section 4 (Byelaws) of the Peterborough Development Corporation Act 1981” and

(c) for the words “the special Act” in paragraphs (c) and (d) there were substituted the words “section 3 of that Act”.

Saving for
Health and
Safety at
Work etc.
Act 1974.

1974 c. 37.

6. Building regulations may repeal or alter section 4 (Byelaws) of this Act or any provision of byelaws in force by virtue of that section and may make any modification of section 5 (Power of entry) of this Act which the Secretary of State considers is appropriate in consequence of the repeal or alteration; and section 80 of the Health and Safety at Work etc. Act 1974 (which among other things provides that regulations under subsection (1) of that section may repeal or modify any provision to which that subsection applies if it appears to the authority making the regulations that it is expedient to do so in consequence of any provision made by or under Part I of that Act) shall have effect as if the provisions to which subsection (1) of that section applies included section 4 (Byelaws) of this Act and byelaws in force by virtue of that section.

Restrictions
on powers of
Corporation.

7. For the purposes of section 4 of the New Towns Act 1965 (which permits restrictions to be imposed on the exercise of the powers of a development corporation under that Act) that section shall apply to the powers of the Corporation conferred by or by virtue of this Act as if they were powers under that Act.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED

FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

70p net

ISBN 0 10 512181 9